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File No.: EXP202205888

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on May 23, 2022. The complaint is directed against MÁRMOLES Y GRANITOS MEJIAS, S. L. with NIF B76361542 (hereinafter, the respondent). The reasons for the complaint are as follows:

“the respondent is responsible for four cameras installed on the façade of an establishment of said entity, which are oriented towards the public road and neighboring residences, without having the necessary administrative authorization for this and without the appropriate signage through the required informative signs of the video surveillance area.”

Along with the notification, images of the location of the cameras subject to the complaint are provided (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on 24/05/22 and 06/06/22, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The forwarding was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), being recorded as in the reiteration carried out on 06/06/22 as confirmed by the official postal service, with the “received” incorporated into the information system of this agency.

It was delivered on 17/06/22 at 13:36, with the recipient being B.-B.B.

THIRD: On August 23, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: On December 14, 2022, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: Upon consulting the database of this agency, it is noted that the aforementioned agreement was subject to an attempted notification by the Official Postal Service, recorded as while leaving a receipt in the mailbox for the appropriate legal purposes.

Additionally, the communication is recorded in the B.O.E on the date 17/XX/XX associated with the procedure with reference number PS/00457/2022.

SIXTH: On 24/01/23, the instructor of the procedure decided to carry out the following tests: “request the Local Police to go to the scene of the facts in order to verify part of the facts subject to transfer to this agency,” with no response having been given to date.

SEVENTH: On 26/04/23, a was issued proposing a sanction in the amount of €600, for having a video surveillance camera system without the required information regarding it, thus proposing a sanction of €600 (€300 + €300), considering Articles 5 and 13 of the GDPR to be affected.

Upon consulting the database of this Agency, the Proposal for Resolution is recorded as published in the BOE on 18/05/23 associated with PS/00457/2022.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

First. In this case, the complaint dated 23/05/22 is examined, which states the following:

“the respondent is responsible for four cameras installed on the façade of an establishment of said entity, which are oriented towards the public road and neighboring residences, without having the necessary administrative authorization for this and without the appropriate signage through the required informative signs of the video surveillance area.”

Second: The entity Mármoles y Granitos Mejías S.L with NIF B76361542 is identified as the main responsible party.

Third: The presence of video surveillance cameras installed on the exterior façade of the establishment oriented towards public space is evidenced, processing data of third parties without justified cause.

Fourth: There is no evidence of any informative sign indicating that it is a video surveillance area, in compliance with the provisions of the GDPR.

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LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In the present case, the complaint dated 23/05/22 is examined, which states the following:

“disposition of four dome-type video surveillance cameras used to monitor the public road...without the proper signage in this regard (...)—file no. 1—.

Article 5.1 c) GDPR provides as follows: Personal data shall be:

“adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’).

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must have the mandatory informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In any case, the cameras must be directed towards private space, avoiding intimidating neighboring residents with such devices, as well as monitoring transit areas without justified cause.

Moreover, such devices cannot capture images of public space, as this is the exclusive competence of the State Security Forces and Corps.

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It is worth noting that even in the case of a “dummy” camera, it must preferably be directed towards private space, as it is considered that such devices may affect the privacy of third parties, who feel intimidated by the belief that they are subject to permanent recording.

Individuals cannot install devices for capturing images of public space and/or transit of third parties, except in cases permitted by the regulations.

The purpose of such devices must be the security of the property and its occupants, avoiding the infringement of the rights of third parties who may feel intimidated by them.

The cameras must be limited to the protection of the property owned by the individual in such a way that they do not affect the area of third parties who may feel intimidated by them, as it affects their free transit area.

III

In accordance with the evidence available in this sanctioning procedure, it is considered that the party complained against has a video surveillance system that could affect the rights of third parties as it is allegedly misdirected.

The initial evidence provided allows for the inference of the misorientation of the cameras, not complying a priori with current legislation, being easily visible from the outside, without it being demonstrated that they comply with the current legal requirements.

Article 72, paragraph 1 of the LOPDGDD (LO 3/2018, December 5) regarding the statute of limitations for very serious infringements states that “they shall prescribe after three years” and particularly the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

The known facts constitute an infringement, attributable to the party complained against, for violating the content of Article 5.1 c) GDPR, as previously mentioned.

IV

Furthermore, from the evidence provided, it is inferred that the cameras are placed in the exterior area (facade of the establishment) without the presence of an informative sign indicating the monitored area.

Article 22, paragraph 4 of the LOPDGDD (LO 3/2018) states: “The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the responsible party, and the

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the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. An access code or internet address to this information may also be included in the informational notice.”

The aforementioned facts imply a violation of the content of Article 13 of the GDPR, as the informational sign lacks an effective address to which one could direct inquiries or indicate the “data controller.”

Article 13 of the GDPR “Information to be provided when personal data are obtained from the data subject”

1. When personal data relating to a data subject are obtained from that data subject, the data controller shall provide the data subject with all the information indicated below at the time of obtaining the data:

a) the identity and contact details of the controller and, where applicable, of its representative; b) the contact details of the data protection officer, where applicable; c) the purposes of the processing for which the personal data are intended and the legal basis for the processing (...).

Article 72, paragraph 1 of the LOPDGDD (Organic Law 3/2018, December 5) regarding the statute of limitations for very serious infringements “shall expire after three years” and in particular the following:

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law.

V

Article 83.5 of the GDPR states the following: “Infringements of the following provisions shall be

subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 4% of the total global annual turnover of the preceding financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9 (...).

b) The rights of data subjects under Articles 12 to 22 (...).

In determining the sanction, it is taken into account that this is an establishment that has not been previously sanctioned, although the poor orientation of the installed cameras suggests an infringement of third-party rights, considering the conduct as grossly negligent, without evidence being provided with documentary proof of the informational signs, which justifies a sanction of €600 (€300 + €300), a sanction situated at the lower end of the scale for this type of conduct and in accordance with the criteria followed by this Agency in similar cases.

VI

The text of the resolution establishes what the infringements committed have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them correspond to the sanctioned party, as it is the data controller who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

It is noted that failure to comply with the requirements of this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may motivate such conduct to initiate a subsequent administrative sanctioning procedure.

Therefore, in accordance with the applicable legislation and assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on the entity MÁRMOLES Y GRANITOS MEJIAS, S. L., with NIF B76361542, for an infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified under Article 83.5 a) and b) of the GDPR, a fine of €600 (€300 + €300).

SECOND: TO ORDER the defendant to, within 15 working days from the day following the notification of this act, proceed as follows:

- Regularize the system by providing a screenshot (date and time) of what is captured by the external cameras.

- Certify with a photograph (date and time) the placement of the mandatory informational signs indicating the data controller and an effective address for the relevant legal purposes.

THIRD: NOTIFY this resolution to MÁRMOLES Y GRANITOS MEJIAS, S. L.

FOURTH: Warn the sanctioned party that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN:

ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the immediate working day thereafter, and if it is...

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The payment deadline will be from the 16th to the last day of each month, both inclusive, and the payment period will extend until the 5th of the following second month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency does not become aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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